

25STCV11193 25STCV11193

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-06-23
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C06%2F23%2F2026
Source SHA-256: 1e48068600f29b79667d755951b7ab86315ad829b48c73a82d93685e4e4c5416

Case Number: 25STCV11193 Hearing Date: June 23, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

SAM ELAWAMRY,

Plaintiff,

vs.

JULIENNE DAVIS, et al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 25STCV11193

[TENTATIVE] ORDER OVERRULING DEMURRER

Dept. 506

8:30 a.m.

June 23, 2026

On

September 4, 2025, Plaintiff Sam Elawamry filed a first amended complaint ("FAC")

against Defendants Julianne Davis and Julian Strongman. The FAC seeks to establish an easement on Defendants'

property, which is adjacent to Plaintiff's property.

On

October 24, 2025, Defendants filed a demurrer.

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740,

747.) When considering demurrers, courts

read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015)

236 Cal.App.4th 1401, 1406.) A special demurrer

for uncertainty under Code of Civil Procedure section 430.10, subdivision (f) is

disfavored and will only be sustained where the pleading is so bad that defendant

or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues

must be admitted or denied, or what counts or claims are directed against him or

her. (Khoury v. Maly's of Calif., Inc.

(1993) 14 Cal.App.4th 612, 616.)

Defendants

argue that Plaintiff cannot establish a prescriptive easement because the FAC does

not allege facts that constitute the requisite hostile use. (Demurrer at p. 4.) But the FAC does allege that Plaintiff's property

"does not have access to the power lines or utilities without the use of the power

lines crossing 1070 Mesita," Plaintiff "has no authority or permission to use the

power lines that cross 1070 Mesita," and "Defendants have also refused to allow

Plaintiff to assist in granting any licenses to the City of Pasadena for the authority

to enter the easement area and conduct maintenance and/or upgrade activities." (FAC ¶¶ 48, 52, 54.)

Moreover,

Plaintiff seeks to quiet title in an easement by necessity, not a prescriptive easement. (See FAC ¶¶ 46-62.) "An easement by way of necessity arises by operation

of law when it is established that (1) there is a strict necessity for the right-of-way,

as when the claimant's property is landlocked and (2) the dominant and servient

tenements were under the same ownership at the time of the conveyance giving rise

to the necessity.” (Moore v. Walsh (1995)

38 Cal.App.4th 1046, 1049.) The FAC alleges

common ownership before the properties were split. (FAC ¶¶ 47-48) An easement is necessary because there is no way

to access the power lines on Plaintiff's property without an easement on Defendants'

property. (FAC ¶¶ 49-62.)

Defendants

also argue that Plaintiff cannot unilaterally impose a public easement. (Demurrer at pp. 5-8.) As pleaded, Plaintiff seeks a private easement

for his own access the power lines, which will then provide him with

“authority for Plaintiff to grant permission to any utility or contractor Plaintiff

needs to maintain and upgrade the power lines.”

(FAC ¶ 55.)

Finally,

Defendants argue that Plaintiff cannot state a claim for quiet title or declaratory

relief because he does not allege a cognizable interest. (See Demurrer at pp. 8-11.) Because the Court finds that Plaintiff sufficiently

alleges a basis for an easement by necessity, the demurrer is fully overruled.

The

demurrer is OVERRULED.

Defendants

are ordered to file an answer within 10 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 23rd day of June 2026

Hon. Thomas D. Long

Judge of the Superior

Court